

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2026-CC-

JAMES A. LEECH and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), JAMES A. LEECH and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I

ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #227, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendant, JAMES A. LEECH, and the Plaintiff, are annual.
5. Defendant, JAMES A. LEECH, a natural person, agreed to reside at 900 9th Ave East, Lot #227, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR

MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Defendant's acknowledgment of receipt of the Rules and Regulations is attached to this Complaint as Plaintiff's "**Exhibit A**".

6. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #227, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.
7. Defendant, JAMES A. LEECH, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #227, Palmetto, Florida, 34221. Defendant, JAMES A. LEECH is now believed to be deceased. A copy of Defendant, JAMES A LEECH's Suggestion of Death is attached is "**Exhibit B**".
8. Plaintiff, as landlord, leased to Defendant, JAMES A. LEECH, LOT #227, of the above stated mobile home park at a monthly rental fee. For the year 2026, the monthly rent is the sum of \$875.00.
9. Defendant, JAMES A. LEECH, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,840.00 which represents the months of July 2026 through August 2026 including late fees, which, according to the Rules and Regulations of Colonial Manor are additional rent.
10. On August 6, 2026, Plaintiff served on Defendants, JAMES A. LEECH and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #227, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's **Exhibit "C"**.
11. On August 6, 2026, Plaintiff also served on Defendants, JAMES A. LEECH and ANY

UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4). A copy of this Notice and certified proof of mailing is attached and marked Plaintiff's Exhibit "D".

12. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.
13. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in Lot #227 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.
14. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.
15. The total lot rental amounts due as of August 6, 2026, which must be paid into the registry of the Court, is \$1,840.00 and \$875.00 due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises against Defendants, JAMES A. LEECH and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II

ACTION FOR DAMAGES (RENTAL)

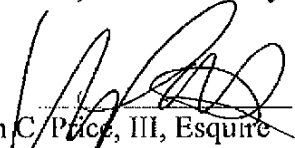
16. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.
17. Plaintiff re-alleges the facts contained within paragraphs 1 through 15 as though fully set forth herein.
18. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

19. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, JAMES A. LEECH, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, JAMES A. LEECH and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #227, Palmetto, Florida, 34221, on this 13th day of August, 2026.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

Colonial Mobile Manor
900 9th Ave East Palmetto, FL 34221
941-722-3191

Lot # 227

Resident Name JAMES LEECH

Resident Name CHARLES SMITH

Resident Name _____

Northern Address NONE

Phone/Cell ^{LEECH} 1-941-822-2009 Phone/Cell 1-828-554-3382

Emergency Contact Information (Please provide two contact names):

Name: KEVIN LEECH Phone/Cell 1-860-289-3018

Name: _____ Phone/Cell _____

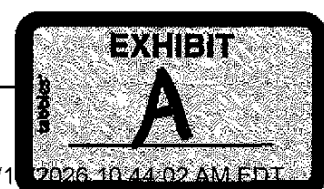
I agree I have received the Rules and Regulations Effective April 1, 2016.

Resident Jim Leach Date 1-16-2016

Resident _____ Date _____

I agree I have received one (1) mail box key today. Additional keys will be \$25.00 each.

Resident: Jim Leach Date 1-16-2016



IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Casc No.: 2026-CC-

JAMES A. LEECH and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

SUGGESTION OF DEATH
PURSUANT TO FLORIDA RULE OF CIVIL PROCEDURE 1.260 (a)(1)

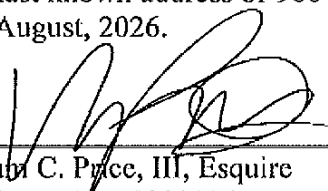
PLEASE TAKE NOTICE that COLONIAL MANOR MHC HOLDINGS, LLC, Plaintiff, in the above-captioned case, respectfully notifies this Honorable Court that Defendant, JAMES A. LEECH, is believed to have died on August 19, 2021. The SmartLinx Person Report indicating his death is attached as "Exhibit 1".

A hearing on this suggestion is requested pursuant to Fla. R. Civ. P. 1.260.

RESPECTFULLY SUBMITTED this 14 day of August, 2026.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Suggestion of Death has been furnished to a private process server for service upon the Defendants, JAMES A LEECH and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #227, Palmetto, Florida, 34221, on this 14 day of August, 2026.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3719
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

EXHIBIT

B

1 OF 1 RECORD(S)

Florida Death Record**This data is for informational purposes only.****Decedent Information**

Name: LEECH, JAMES A
Address: 900 9TH AVE E LOT 227
PALMETTO, FL 34221-5320
MANATEE COUNTY
LexID(sm): 001483937905

Decedent Personal Information

SSN: 043-32-XXXX
Gender: MALE
Age: 80
Date of Death: 08/19/2021
Race: WHITE
Date of Birth: 03/1941
Birthplace: CONNECTICUT, UNITED STATES
Marital Status: NEVER-MARRIED
Armed Forces: YES
Education: HIGH SCHOOL GRADUATE OR GE

Family Information

Father: LEECH, ALFRED
Mother: HUMPAGE, MARGARET M

Death Information

Certifier: PHYSICIAN
Death Location: BRADENTON, MANATEE
Death Disposition: CREMATION
Hospital Status: HOSPICE

Important: The Public Records and commercially available data sources used on reports have errors. Data is sometimes entered poorly, processed incorrectly and is generally not free from defect. This system should not be relied upon as definitively accurate. Before relying on any data this system supplies, it should be independently verified. For Secretary of State documents, the following data is for information purposes only and is not an official record. Certified copies may be obtained from that individual state's Department of State.

Your DPPA Permissible Use: Motor Vehicle or Driver's Safety
Your Secondary DPPA Permissible Use: None
Your GLBA Permissible Use: Legal Compliance
Your DMF Permissible Use: Legitimate Business Purpose

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DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: August 06, 2026

TO: JAMES LEECH
and All Unknown/Unauthorized
Occupants
900 9th Ave E, Lot # 227
Palmetto, Florida 34221

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peake, Manager

Certified Mail: # 9589 0710 5270 3303 2787 53

and All Unknown/Unauthorized Occupants
Lot #
Florida
Certified Mail: #

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 875.00 per month.

You have failed to pay all the past due lot rental amounts for the months of July thru August, 2026, in the amount of \$ 1840.00, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 1840.00, payable to the address above.

- Rent for the billing period of August 2026 in the amount of \$875.00
- Late Fee for the billing period of August 2026 in the amount of \$45.00
- July 2026 - \$920
 - Rent on Jul 1, 2026 to Jul 31, 2026 in the amount of \$875.00
 - Late Fee on Jul 1, 2026 to Jul 31, 2026 in the amount of \$45.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before August 13, 2026, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.



COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____

CERTIFIED MAIL: # _____

CERTIFIED MAIL: # _____

MAILED ON: August 06, 2026

BY: Cheryl Leake
(Employee Signature)

COPY POSTED ON PREMISES (900 9th Ave E, Lot # 227)

POSTED ON: Aug 6 2026 @ 12:30 pm
(date/time)

POSTED BY: Cheryl Leake
(Employee Signature)

Colonial Manor MHC Holdings, LLC

vs.

JAMES LEECH

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: August 06, 2026

TO: JAMES LEECH
and All Unknown/Unauthorized
Occupants
900 9th Ave E, Lot # 227
Palmetto, Florida 34221

FROM: Colonial Manor MHG Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peake, Manager

Certified Mail: # 9589 0710 5270 3303 2787 53

and All Unknown/Unauthorized Occupants
_____, Lot # _____
_____, Florida _____
Certified Mail: # _____

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

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PLEASE GOVERN YOURSELF ACCORDINGLY.

EXHIBIT

D

COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____

MAILED ON: August 06, 2026

BY: Cheryl Leake
(Employee Signature)

COPY POSTED ON PREMISES (900 9th Ave E _____, Lot # 227)

POSTED ON: Aug 6 2026 @ 12:30 pm
(date/time)

POSTED BY: Cheryl Leake
(Employee Signature)

Colonial Manor MHC Holdings, LLC

vs.

JAMES LEECH

U.S. Postal Service
CERTIFIED MAIL RECEIPT
Domestic Mail Only

Postnet ZIP Code 01234
Palmetto FL 34221

Postage \$5.00

01234 75

Postmark
May 1980

James Leach
900 9th Ave E lot 127
Palmetto FL 34221

50x47
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 08/08/2025
Certified Mail® \$5.55
Tracking #: 9559 0710 5270 3303 2787 00
Return Receipt \$4.85
Tracking #: 9550 9402 3014 4122 0100 01
Total \$11.02

50x57
First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 08/08/2025
Certified Mail® \$5.55
Tracking #: 9559 0710 5270 3303 2787 77
Return Receipt \$4.85
Tracking #: 9550 9402 3014 4122 0100 04
Total \$11.02

Lot 230 (Trump)
First-Class Mail® 1 \$0.82
Letter
Tampa, FL 33619
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 08/08/2025
Certified Mail® \$5.55
Tracking #: 9559 0710 5270 3303 2787 22
Return Receipt \$4.85
Tracking #: 9550 9402 3014 4122 0100 17
Total \$11.02

Lot 230 (Palmetto)
First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 08/08/2025
Certified Mail® \$5.55
Tracking #: 9559 0710 5270 3303 2787 09
Return Receipt \$4.85
Tracking #: 9550 9402 3014 4122 0100 04
Total \$11.02

50x227
First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 08/08/2025
Certified Mail® \$5.55
Tracking #: 9559 0710 5270 3303 2787 53
Return Receipt \$4.85
Tracking #: 9550 9402 3014 4122 0100 08
Total \$11.02

50x20
First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 08/08/2025
Certified Mail® \$5.55
Tracking #: 9559 0710 5270 3303 2787 84
Return Receipt \$4.85
Tracking #: 9550 9402 3014 4122 0100 01
Total \$11.02

Grand Total: \$44.12